

# Dinesh Kumar Shivhare v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 September 2020 · Writ-C No. 14109 of 2020 · WRIT - C No. - 14109 of 2020 · **Writ disposed; petitioner relegated to Clause 6.5**

## HEADNOTE

A consumer disputing unadjusted deposits and a recovery certificate for electricity dues was relegated to a representation before respondent no. 3 under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ was disposed of without examining the bill or recovery on merits, with a direction to decide any timely application in accordance with law.

## FACTUAL SUMMARY

Dinesh Kumar Shivhare petitioned the Allahabad High Court that electricity dues stood against him and that, although he had deposited amounts from time to time, those deposits were not adjusted and a recovery certificate for Rs. 6,32,165 was issued. Counsel for the licensee respondents said he could apply before respondent no. 3 under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not examine the deposits or the recovery certificate on merits.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

clause-6.5-statutory-remedy

#### HOLDING

Where the consumer alleges that deposits towards electricity dues were not adjusted and a recovery certificate has been issued, the High Court may dispose of the writ by granting liberty to apply before the designated officer under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if the application is filed within the time fixed, it is to be decided in accordance with law, without the Court adjudicating the dues or the recovery. ¶ 1

## PRINCIPLE TAGS

**clause-6.5-statutory-remedy** The writ was disposed of by sending the consumer to a Clause 6.5 application before respondent no. 3 instead of deciding the disputed dues and recovery certificate. ¶ 1

**clause-6.5-statutory-remedy-disputed-bill** The dispute was non-adjustment of deposits against electricity dues and issuance of a recovery certificate; Clause 6.5 was treated as the statutory path. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE PETITIONER'S DEPOSITS WERE IN FACT LEFT UNADJUSTED AGAINST ELECTRICITY DUES

The Court did not examine the ledger or the fact of deposit. ¶ 1

### NOT DECIDED — CORRECTNESS OF THE RECOVERY CERTIFICATE OF RS. 6,32,165

Left to the Clause 6.5 authority. ¶ 1